

REQUEST TO IMPLEMENT MANDATORY CLOSURE AND CORRECT PUBLIC-ACCESS STATUS

To: the office of the ..... court  
for .....

(THE COURT IN THE ORIGINAL CRIMINAL CASE, AND ITS COUNTY OR LOCATION - that  
court's own office can confirm both)

From: Maria-Alejandra O'Shaughnessy-Whitfield  
1188 Upper Sheyenne Crossing Road, Apartment 14B, Fargo, North Dakota 58103-2214  
Telephone: (701) 555-0199 ext. 4417 Email:  
maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Re: request to implement mandatory closure under N.D.C.C. Sec. 12-60.1-05, and to correct the  
public-access status of the record

Case number of the original criminal case:  
.....

Qualifying non-conviction disposition, worded exactly as the court record words it:  
.....

Date the qualifying disposition was entered (it must be on or after August 1, 2025 for this request to  
apply):  
.....

Date 61 complete days after the disposition date (the calculated deadline):  
.....

1. Under N.D.C.C. Sec. 12-60.1-05, for a qualifying non-conviction disposition entered on or after August  
1, 2025, the court closes the record by operation of the statute. The recorded period is 61 complete days  
from the qualifying disposition, with verification on day 62 or the next business day. Nothing is filed to  
obtain the closure itself.

2. The record identified above is still publicly accessible after that calculated deadline. My evidence of  
continuing public access, checked on day 62 or the next business day (attach it - for example a dated  
printout of the public index entry):  
.....  
.....

3. I therefore ask this office to implement the mandatory closure the statute directs, and to correct the  
public-access status of the record. If this office's position is that judicial action is required, please say so  
in writing.

DATE ..... SIGNATURE .....

(You sign and date this request personally. Nothing on this page is signed or dated for you.)

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd\_still  
\_public\_day\_62:written\_clerk\_correction\_request

MOTION TO ENFORCE MANDATORY CLOSURE UNDER N.D.C.C. SEC. 12-60.1-05

USE THIS PAGE ONLY AFTER THE WRITTEN REQUEST. The recorded sequence is: first the written request to the office of the court in the original criminal case; then this motion, only if that office states that judicial action is required or does not correct the record. If your request corrected the record, do not file this motion.

IN THE ..... COURT  
FOR .....

STATE OF NORTH DAKOTA,  
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,  
DEFENDANT.

Case number of the original criminal case:

.....

MOTION TO ENFORCE MANDATORY CLOSURE UNDER N.D.C.C. Sec. 12-60.1-05

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, states that the disposition in this case was a qualifying non-conviction disposition entered on or after August 1, 2025, and that under N.D.C.C. Sec. 12-60.1-05 the court closes such a record by operation of the statute after 61 complete days.

Qualifying non-conviction disposition, worded exactly as the court record words it:

.....

Date the qualifying disposition was entered:

.....

2. More than 61 complete days have passed and the record remains publicly accessible. A written request to implement the closure was made to the office of this court. What that office said or did in response (state it in your own words, and attach a copy of your request):

.....

.....

3. The defendant asks the Court to enforce the mandatory closure that N.D.C.C. Sec. 12-60.1-05 directs, and to order the public-access status of the record corrected. A proposed order accompanies this motion.

DATE ..... SIGNATURE OF DEFENDANT .....

(The defendant signs and dates this motion personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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58103-2214

TELEPHONE: (701) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd\_still  
\_public\_day\_62:original\_case\_enforcement\_motion

PROPOSED ORDER ENFORCING MANDATORY CLOSURE UNDER N.D.C.C. SEC. 12-60.1-05

IN THE ..... COURT  
FOR .....

STATE OF NORTH DAKOTA,  
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,  
DEFENDANT.

Case number of the original criminal case:  
.....

PROPOSED ORDER

This matter came before the Court on the defendant's Motion to Enforce Mandatory Closure Under N.D.C.C. Sec. 12-60.1-05. The Court, having considered the motion,

ORDERS that .....

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the motion for the Court's convenience; nothing on it is completed, decided, signed or dated by the defendant or by this packet.)

DATED .....

.....  
(The court signs here if, and only if, it grants the motion.)

Route:  
obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd\_still  
\_public\_day\_62:original\_case\_enforcement\_motion

## FILING INSTRUCTIONS

This packet is prepared for correcting a North Dakota non-conviction court record that should have closed automatically under N.D.C.C. Sec. 12-60.1-05 and is still public on day 62.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

## THE ONE SITUATION THIS PACKET IS FOR

A qualifying non-conviction disposition entered ON OR AFTER August 1, 2025 closes by operation of N.D.C.C. Sec. 12-60.1-05: you wait 61 complete days, verify on day 62 or the next business day, and file nothing to obtain the closure itself. This packet is only for the case where that check shows the record STILL PUBLIC.

## WHAT YOU DO, IN ORDER

STEP ONE. Confirm the disposition date is on or after August 1, 2025. If it is earlier, stop: the record states that pre-August 1, 2025 dispositions remain on the official petition route, and this packet does not carry that petition.

STEP TWO. Count 61 complete days from the qualifying disposition and check the public index on day 62 or the next business day. No recorded source promises you individualized notice of closure - checking is yours to do. Keep dated evidence of what you find.

STEP THREE. If the record is still public, complete and send the WRITTEN REQUEST to the office of the court in the original criminal case. Ask that office how it accepts delivery, and use that method.

STEP FOUR. Only if that office states that judicial action is required, or does not correct the record, complete and file the ENFORCEMENT MOTION in the original criminal case, with the unsigned proposed order. Ask the office of that court whether a filing fee applies - no committed record this packet is built from states one.

STEP FIVE. Sign and date each page yourself.

## WHAT THIS PACKET DELIBERATELY DOES NOT COVER

- The automatic closure itself. Nothing is filed to obtain it.
- Pre-August 1, 2025 dispositions. They remain on the official petition route, a different instrument.
- BCI or originating-agency history correction. Closing the court record does not correct an agency history; that is a separate challenge to that agency, and the record states the two must not be presented as one step.
- Contested eligibility. The recorded rule: a contested eligibility question is individualized advocacy. Take it to a lawyer.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- eligibility for the closure is contested;
- the disposition date is before August 1, 2025;
- an agency history still shows the matter after the court record closes;

- any immigration question is involved.

#### WHAT THIS PACKET IS NOT

This is a prepared set of composed correction instruments for one recorded failure branch. It is not legal advice, it is not filed for you, and it does not decide whether the record qualifies or whether any court will act on it.

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd\_still  
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